Revision Date:
October 1, 2025

Background:
The application process begins when a customer or Authorized Representative (AR) applies for Medi-Cal benefits by telephone, mail, electronically, or by attending a face-to-face interview. When a request is received without a Statement of Facts (SOF), an Initial Application for CalFresh, Cash Aid, and/or Medi-Cal/Health Care Programs (SAWS 1) application form is filled out and the customer or AR is given a Single Streamlined Application (SSApp) with a reasonable time to submit.

Purpose:
This section has been revised to include new guidance from the Department of Health Care Services (DHCS) on the acceptance of electronic signatures collected and submitted by a third party.

Policy:
As part of the application process, all Medi-Cal customers must be informed of their rights and responsibilities. The customer's Medi-Cal eligibility and share of cost (SOC) determination is made after the customer has applied, completed the SOF, and provided all essential information and verifications.

Customers may submit the completed SOF and required verifications by mail, electronically, or in person. Applications and sworn statements may also be completed telephonically. Refer to Medi-Cal Program Guide (MPG) 04.07.01 for further guidance on verification requirements.

Procedure:
A. SAWS 1
A completed SAWS 1 begins the application process by establishing the date of application and months of potential retroactive eligibility. When a SOF is used, the application cannot be denied due to an incomplete or missing SAWS 1.

If an individual is deceased or unable to apply on their own behalf, a SAWS 1 may be filed by any of the following:
- The customer's guardian, conservator, or executor
- An adult who is in the customer's household or family
- A person who knows the customer's need to apply
- A public agency representative
- Someone acting responsibly for the customer if the customer is a minor or incapacitated

B. Ways to Apply
An individual may apply for Medi-Cal benefits by:
- Calling Access at (866) 262-9881 to request a mail-in application
- Calling 2-1-1 to apply over the phone with a 2-1-1 San Diego agent
- Visiting a Family Resource Center (FRC) or outstation site to request a mail-in application or face-to-face/telephone interview
- Submitting an electronic application through BenefitsCal or Covered California (CA)
- Applying through the Perinatal Care Network (PCN)
- Making the request while receiving aid under another Public Assistance (PA) program

- Faxing or emailing the Document Processing Center (DPC)

Electronic Signatures (e-signatures) outside of BenefitsCal and Covered CA, are only acceptable on Medi-Cal forms when collected by the following software companies:

- Adobe Sign
- Clio Draft (formerly Lawyaw)
- DocuSign
- Nitro
- PandaDoc

Note: A typed signature collected outside of the above listed e-signature programs is **not** acceptable. Refer to MPG 04.02.22 for applications submitted with a typed signature.

Insufficient Information Received

When an application is unsigned or does not include the information necessary to evaluate eligibility (ex. name and address only), or form MC 171 Medi-Cal Long-Term Care Facility Admission and Discharge Notification is received and the customer does not have an active or pending case, DPC will register the application and mail an application packet along with form 14-85 HHSA Reminder Notice. The registered application is then assigned to the corresponding FRC for follow up. Refer to FRC/Office Required Actions 04.02.01F for guidance on follow up actions.

C. Date of Application

The date of application for Medi-Cal benefits will be established using the following guidelines:

If the request is made…	then the date of application is the date the…
over the phone,	phone request is made.
in person,	SAWS 1 is signed by the customer.
by mail,	County receives the Medi-Cal application or SAWS 1.
online through Covered CA,	application is submitted.
to the Covered CA call center and the call is transferred to the County as a Quick Sort Transfer,	request was transferred by Covered CA to the County, even if a voice mail message is left for Access staff to return. **Example 1:** Covered CA received a call from a customer on Friday, 3/21/25 at 6 pm. The call was Quick Sort transferred to San Diego County on the same day. The date of application will be 3/21/25. **Example 2:** Covered CA received a call from a customer on Sunday, 3/23/25. The call was Quick Sort transferred to San Diego County but since the County was not open for business, the customer was able to leave a voice mail message. The date of application will be 3/23/25.
online through BenefitsCal,	application is received. If received after 5 PM, the application date is the next business day.

Applications from Covered CA Advanced Premium Tax Credit (APTC) beneficiaries transitioning to Medi-Cal will reflect the initial application date from the last Covered CA open enrollment or special enrollment. The DPC will register the application using the date the referral was initiated.

Note: The date of application will always be the earlier of the two dates when the SOF and SAWS 1 are received separately.

D. Processing Requests for a Face-to-Face or Telephone Interview

When a customer requests Medi-Cal at an FRC or outstation site, and chooses to attend a face-to-face or telephone interview:

Step	Action
1	Ask the customer to complete and sign a SAWS 1 to preserve the date of application.
2	Schedule an appointment according to office procedures.
3	Complete the application registration process and assign the pending case to the central pending case bank based on office procedures.
4	Provide the customer with a Medi-Cal application packet and form 14-85 HHSA which serves as the first contact request for application. **Note:** FRC staff may screen the customer at the time of request and provide any supplemental forms that may be required.
5	Inform the customer that if Medi-Cal eligibility is approved and they are eligible to enroll in a health plan, the Health Care Options (HCO) packet will arrive by mail for the customer to choose a health plan. If the customer would like assistance with their Medi-Cal managed care health plan enrollment or changes, they can contact HCO via phone at 1-800-430-4263 or by visiting an FRC.
6	Ask the customer if they would like to apply for CalFresh in addition to Medi-Cal. If the customer is interested in applying for CalFresh, inform them to expect an interview within 30 days and they can choose to do so over the phone (refer to CalFresh Program Guide (CFPG) 63-103). The CalFresh interview may be scheduled with the Medi-Cal application to streamline the application process.
7	Complete a journal entry documenting all case actions taken and image the SAWS 1 and form 14-85 HHSA in Hyland if not system generated.

Actions to take on the day of the appointment:

If the customer…	then…
does not attend and no contact is made by the customer to reschedule,	• send a second 14-85 HHSA ten days from the date the first 14-85 HHSA was issued • if the customer does not provide an application by the second due date, deny the application and send denial Notice of Action (NOA)
does not attend but contact is made by the customer to reschedule,	• schedule an appointment according to office procedures • if the customer does not attend the interview, deny the application after two contacts (allow 10-calendar days for each) have been made
attends the face-to-face or telephone interview,	process the application as follows.

If the application is…	then…
complete,	evaluate for eligibility and notify the customer of the determination. Complete the eligibility determination within the 45-day or 90-day period as specified in MPG 04.02.17.
incomplete,	follow the two 10-day timeline specified in MPG 04.07.12A to request needed information/verification.

E. Processing in Person Requests at FRC for a Mail-In Application

Upon an in-person request for a mail-in application, take the following actions to provide the customer with the necessary information at the time of the request:

Step	Action
1	Explain to the customer that they can apply for Medi-Cal via mail, electronically, or attend a telephone or face-to-face interview.
2	Ask the customer to complete and sign a SAWS 1 to preserve the date of application. Hospital and Community Support Services (HCSS) staff will process the SAWS 1 requests received for their office.
3	Complete the application registration process and assign the pending case to the central pending case bank based on office procedures.
4	Provide the customer with the Medi-Cal application packet and form 14-85 HHSA which serves as the first contact request for application. **Note:** Staff may screen the customer at the time of request and provide any supplemental forms that may be required.
5	Inform the customer that if Medi-Cal eligibility is approved and they are eligible to enroll in a health plan, the HCO packet will arrive by mail for the customer to choose a health plan. If the customer would like assistance with their Medi-Cal managed care health plan enrollment or to make changes, they can contact HCO via phone or by visiting an FRC.

6	Ask the customer if they would like to apply for CalFresh in addition to Medi-Cal. If the customer is interested in applying for CalFresh or needs CalFresh Expedited Services, explain to the customer that a face-to-face interview is advisable and may provide them with faster benefits, especially if the customer does not have access to a regular source of communication. Inform all other customers to expect an interview within 30 days (refer to CFPG 63-103). The CalFresh interview may be scheduled with the Medi-Cal application to streamline the application process. However, the customer may still apply for Medi-Cal by mail if they choose to.
7	Complete a journal entry documenting all case actions taken and image the SAWS 1 and form 14-85 HHSA (if not system generated).

Ten days after the first 14-85 HHSA was issued, determine if the application packet has been received.

If the application packet is…	then…
received,	assign the application to an eligibility worker to process. **If the application is…** / **then…** complete, — evaluate for eligibility and notify the customer of the determination. Complete the eligibility determination within the 45-day or 90-day period as specified in MPG 04.02.17. incomplete, — follow the two 10-day verification checklist (VCL) timeline specified in MPG 04.07.12A to request needed information/verification.
not received within 10 business days,	send a second 14-85 HHSA and allow an additional 10 calendar days.
not received after second 14-85 HHSA was sent,	deny. **Note:** FRCs are encouraged to attempt a reminder phone call prior to denial for those customers who do not submit the application.

F. Processing Mail-in Requests Received at Access

Access Actions

When a customer contacts Access to request a mail-in application:

Step	Action
1	Clear all individuals requesting Medi-Cal. **If an active Medi-Cal case…** / **then…** exists, — • inform the customer of the existing case • update case and mail any required forms or notices • notify the FRC of the request when follow up is necessary does not exist, — proceed to Step 2.

2	Send an internal application registration referral to DPC. • The date of application is the date the request was made. **Note:** Since the SAWS 1 is not required with the SOF, the SAWS 1 completed by DPC will not include the customer's signature.
3	DPC will complete the application registration process and send the Medi-Cal mail-in application packet including form 14-85 HHSA with a self-addressed envelope and a copy of the SAWS 1 to the customer by mail. **Note:** The packet must be sent on the same day the request is made.
4	DPC will image the SAWS 1 and form 14-85 HHSA (if not system generated) and assign the Medi-Cal pending case to the appropriate FRC pending bank.

FRC/Office Actions

Ten days after the application date or the date the Medi-Cal application with form 14-85 HHSA was sent to the customer (whichever is later), FRC staff will determine if the application has been received.

If the application packet is…	**then…**
received,	assign the application to an eligibility worker to process.

If the application is…	**then…**
complete,	evaluate for eligibility and notify the customer of the determination. Complete the eligibility determination within the 45-day or 90-day period as specified in MPG 04.02.17.
incomplete,	follow the two 10-day timeline specified in MPG 04.07.12A to request needed information/verification.

not received within 10 business days,	send a second 14-85 HHSA and allow an additional 10 calendar days.
not received after second 14-85 HHSA was sent,	deny. **Note:** FRCs are encouraged to attempt a reminder phone call prior to denial for those customers who do not submit the application.

Note: Some applications must be run through the California Healthcare Eligibility, Enrollment, and Retention System (CalHEERS) Business Rules Engine (BRE) to electronically verify attested information prior to requesting paper verifications. See MPG 04.02.22 for information on which applications must and must not be run through the CalHEERS BRE.

G. Good Cause for SOF Received After Denial

If the SOF is returned after the date of the denial, evaluate for good cause as noted in MPG 04.21.

- If good cause is established:
  - rescind the denial and process the application back to the SAWS 1 date

- the information reported on the SOF must adequately and accurately reflect the customer's situation in the month of application
- confirm whether there have been changes in the household since the SAWS 1 was received that may affect eligibility and complete a detailed case journal entry (phone contact is sufficient). If changes have occurred, take any necessary actions and request any non-electronically verified information needed to establish eligibility.

- If no good cause exists, process the SOF received as follows:
  - the date of application is the date the SOF was received after the denial action
  - the intake scheduling staff should enter the submitted application on the schedule as a new intake

Note:
- There is no limit to the number of times a SAWS 1 may be completed however, the SOF must be dated by the customer no more than 12 months prior to the application date
- The renewal date must not be more than 12 months from the customer's signature on the SOF or SAWS 1, whichever is earlier

Program Impacts:
None

References:
42CFR 435.907(f)
W&I Code 14005.37(r)
CCR Title XXII, Section 50151, 50175
ACWDL 00-31, 00-31E, 12-28, 12-29, 12-33, 01-06, 18-16,19-17E, 22-12, 24-18
MEDIL I 10-12,12-02, 16-01, 21-38
Medi-Cal Memo 19-07

Sunset Date:
This policy will be reviewed for continuance by September 30, 2028.

Approval for Release:

10-28-25

Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
04/01/2023

Background:
The Department of Health Care Services (DHCS) provides guidelines on the material that must be provided to all households at time of application for Medi-Cal. To facilitate the application process and remove barriers to access, the material provided to Medi-Cal applicants will be kept as simple as possible and will be made into packets.

Purpose:
To provide policy and procedures for Medi-Cal intake packets. This section is revised to remove references to form 14-68 HHSA which is now obsolete. The 14-85 HHSA Reminder Notice will now be included with all Medi-Cal application packets.

Policy:
In compliance with state requirements, the county must provide informational material to all household members at the time the initial application is submitted to the county. In addition to the DHCS mandated informational material, the packet will include Civil Rights and County approved informational material.

Applicants who request to apply for Medi-Cal by attending a face-to-face interview may visit a Family Resource Center (FRC) and will be handed the Medi-Cal application packet. The Document Processing Center (DPC) is responsible for mailing the "Application Packet" to applicants who submit their Medi-Cal application electronically.

Those opting for the mail-in process may:
- Pick up the application packet in person at an FRC
- Receive the application packet by mail by calling Access or 211

Mail-in application forms are also available for pick up from other sources (for example, DHCS Medi-Cal website, outstation sites, clinics, etc.).

Provide Supplemental Non-Modified Adjusted Gross Income (Non-MAGI) evaluation forms to applicants who meet potential Non-MAGI eligibility as stated in Medi-Cal Program Guide (MPG) 04.02.23.

Procedure:
04.02.02A Medi-Cal Application Packet
Give or mail to all applicants, including mail-ins, Low Income Subsidy (LIS) Extra Help applicants and those who wish to apply by attending a face-to-face interview, the Medi-Cal application packet. The Medi-Cal application packet will contain the following forms:

Form Number	Form Title
MC 018	MC Information Notice – Medi-Cal Information for Applicants (Cover Letter)
MC 020	MC Information Notice – Notice to Beneficiaries Regarding IRS Form 1095-B
MC 219	Important Information for Persons Requesting Medi-Cal
Pub 183 English or 184 Spanish	Child Health Disability Prevention (CHDP) Information

Pub 68	My Medi-Cal How to Get the Health Care You Need
MC 003	Early Periodic Screening, Diagnosis, and Treatment (EPSDT) Brochure
MC 372	Breast and Cervical Cancer Treatment Program (BCCTP) Brochure
GEN 1365	Notice of Language Services
20-46 HHSA	Language Needs Determination
Pub 13	Your Rights Under California Public Benefits Program Pamphlet
14-75 HHSA	Mental Health Managed Care Notice
20-44 HHSA	Civil Rights Information
16-64 HHSA	National Voter Registration Act (NVRA) Voter Preference Form
	California Voter Registration Form (VRC)
	San Diego Gas & Electric CARE Program Form
09-98 HHSA	CalFresh Outreach Flyer for Medi-Cal Applicants (Non-Long-term care (LTC) only)
CF 285	Application for CalFresh Benefits (non-LTC only)
	Women, Infants, and Children (WIC) Brochure
16-157-A HHSA	Text Messaging Service Agreement
	Traffic Flow Flyer
	Your Opinion Counts Survey

For applicants picking up a Medi-Cal application at the FRC or requesting a Medi-Cal mail-in application, include:

- 14-85 HHSA Reminder Notice
- CCFRM604 Application for Health Insurance
- Postage paid pre-addressed return envelope

Note: The CCFRM604, also known as the Medi-Cal application or Single Streamlined Application, is not required when the applicant completes any other Statement of Facts (SOF) as indicated in MPG 04.02.04.

04.02.02B Medicare Savings Program (MSP) Only Applicants

MSP-Only applicants may use the MC 14-A Qualified Medicare Beneficiary, Specified Low-Income Medicare Beneficiary, or Qualifying Individual Application instead of the Single Streamlined Application. The following forms are sent to MSP-Only applicants:

Form Number	Form Title
MC 018	MC Information Notice – Medi-Cal Information for Applicants (Cover Letter)
MC 020	MC Information Notice – Notice to Beneficiaries Regarding IRS Form 1095-B
MC 219	Important Information for Persons Requesting Medi-Cal
Pub 68	My Medi-Cal – How to Get the Care You Need
Pub 13	Your Rights Under California Public Benefits Program Pamphlet
MC 372	Breast and Cervical Cancer Treatment Program (BCCTP) Brochure
GEN 1365	Notice of Language Services
20-46 HHSA	Language Needs Determination
14-75 HHSA	Mental Health Managed Care Notice
	San Diego Gas & Electric CARE Program Form
09-98 HHSA	CalFresh Outreach Flyer for Medi-Cal Applicants (Non-LTC Only)

20-44 HHSA	Civil Rights Information
16-64 HHSA	National Voter Registration Act (NVRA) Voter Preference Form
	California Voter Registration Card (VRC)
16-157-A HHSA	Text Messaging Service Agreement
	Traffic Flow Flyer
	Your Opinion Counts Survey

04.02.02C Supplemental Forms

Mail supplemental forms to the applicant after the completed Medi-Cal application is submitted and the Human Services Specialist (HSS) evaluates the applicant's circumstances. For applicants requesting a face-to-face interview, provide these forms to the applicant during the interview. Case comments must be entered to support the HSS' actions.

Medical Support Enforcement (MSE) Forms

Provide the following forms to applicants requesting Medi-Cal for a child born out of wedlock or with an absent parent:

Form Number	Form Title
CS 196	Child Support Services Program Notice
CW 2.1 NA	Child Support Notice and Agreement
CW 2.1 Q	Child Support Questionnaire
	Postage paid pre-addressed return envelope

Forms Provided to Non-MAGI and LIS Extra Help Households at Application

Non-MAGI and LIS Extra Help evaluation forms must only be provided to Medi-Cal applicants who are subject to a property evaluation for Medi-Cal eligibility:

Form Number	Form Title
14-146	Non-MAGI Cover Letter for Applicants
Pub 10	Non-MAGI Medi-Cal Programs Brochure
MC 604 IPS	Additional Income and Property Information Needed for Medi-Cal
MC 007	Medi-Cal General Property Limitations
DHCS 7077	Notice Regarding Standards for Medi-Cal Eligibility (only if the individual is institutionalized or requesting nursing facility level of care)
DHCS 7077-A	Notice Regarding Transfer of a Home for Both a Married and Unmarried Applicant/Beneficiary
APTC/CSR Brochure	Covered CA Can Help You Get Affordable Health Coverage
	Postage paid pre-addressed return envelope

Statement of Citizenship, Alienage, and Immigration Status Form (MC 13)

The Statement of Citizenship, Alienage, and Immigration Status (MC 13) is not provided to all applicants at initial application. The form is provided to applicants when appropriate as noted in MPG 04.02.09.

04.02.02D Case Comments

Enter case comments indicating that the Medi-Cal application packet and/or supplemental forms were provided to the applicant.

Program Impacts:

Forms and Document Capture

Forms are available for printing in Eligibility Forms Library (EFL) and/or Xerox. The Medi-Cal application packet and the Non-MAGI evaluation forms are available in pre-assembled packets for ordering.

Other Programs Affected

California Work Opportunity and Responsibility for Kids (CalWORKs) application packets must include the MC 020 MC Information Notice – Notice to Beneficiaries Regarding IRS Form 1095-B.

References:

ACWDLs 01-06, 07-12, 08-32, 17-01, 17-26, 20-22, 22-12
MEDILs I 12-02, 14-21, 14-54, 14-54E, 15-35, 15-36

Sunset Date:

This policy will be reviewed for continuance by 04/30/2026.

Approval for Release:

4-26-23

Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
04/01/2021

Background:
All applicants must be informed of their rights and responsibilities. The Rights and Responsibilities for Medi-Cal form (MC 219) was updated to reflect new rules and changes in accordance with the Affordable Care Act (ACA).

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

Policy:
Each applicant must be informed of their rights and responsibilities under the Medi-Cal program even if it appears that the applicant is ineligible. As part of the applicant's rights, information that must be supplied to the applicant includes:

- Copy of the Right and Responsibilities form (MC 219)
- Information on general Medi-Cal property limits (MC 007 and MC 005, if applicable)
- Income Eligibility Verification System (IEVS) information

Additionally, evaluate the applicant's potential eligibility to other Public Assistance (PA) programs, such as CalWORKs and CalFresh only when requested. Refer the applicant to apply for Supplemental Security Income/State Supplementary Payment (SSI/SSP) if they appear eligible to that program. The applicant would only be evaluated for County Medical Services (CMS) if they are not eligible to Medi-Cal.

Procedure:
04.02.03A Inform Applicant of Rights
All Medi-Cal applicants shall be provided with the following information:

Requirement	Description
MC 219 – Rights and Responsibilities	Give or send the MC 219, "Important Information for Persons Requesting Medi-Cal", to the applicant. Document in case comments that the information was provided to the applicant. It does not have to be returned by the applicant. For CalWORKs applicants who are determined ineligible to CalWORKs but wish to apply for Medi-Cal only, the signed SAWS 2 Plus is an acceptable replacement of the MC 219. Give applicants who request Medi-Cal after a CalFresh only application the MC 219.
MC 007 – General Property Limits	Give the MC Information Notice 007 to all applicants who are subject to a property evaluation. All applicants shall be informed of their right to reduce nonexempt excess property within the month of application, provided the applicant receives adequate consideration. Adequate consideration applies only to an institutionalized individual after January 1, 1990.

Ways to Reduce Excess Property	Provide options as to how excess property may be reduced and how adequate consideration may be obtained to establish eligibility in the month of application. Do this as soon as there is an indication that the applicant may be ineligible because of excess property. Such options shall include, but are not limited to: • Paying medical or other bills • Purchasing exempt items • Paying off mortgages or car loans • Making home repairs or improvements to property • Borrowing against the cash values of nonexempt property and life insurance policies and then reducing the proceeds by receiving adequate consideration • Informing the applicant that the cash surrender value of nonexempt life insurance policies and any other asset will be considered unavailable as the applicant continues to make a good faith effort to liquidate the asset • Setting aside up to $1,500 for the individual's burial as a designated Burial Fund Refer to MPG 09.01.09 for more information on reduction of excess property (spend down).
IEVS	The Single Streamlined Application informs Medi-Cal applicants that their Social Security number (SSN) will be used to access State and Federal information on income and resources. Explain to the applicant that: • the SSN will be used to match information provided to the State by employers, Employment Development Department (EDD) and financial institutions, • although applicants who are not Unites States citizen and who request restricted benefits are not required to provide a SSN, their SSN will be used to access income and resource information if the applicant voluntarily provides a SSN or if the SSN is available through a prior case record, • information received through IEVS is used to ensure that the eligibility and share of cost (SOC) determination is correct and that the information may be verified through collateral contacts when discrepancies are found.
Health Care Options (HCO)	Inform the applicant that if Medi-Cal eligibility is approved and they are eligible to enroll in a health plan, the Health Care Options (HCO) packet will arrive by mail for the customer to choose a health plan. If the applicant would like to obtain assistance with their Medi-Cal managed care health plan enrollment or make changes, the customer can: • Contact HCO by telephone • Walk-in to any Family Resource Center (FRC)

04.02.03B Review of Potential Eligibility for Other PA Programs

When reviewing the application, evaluate the applicant's apparent eligibility for CalWORKs, CalFresh, and SSI/SSP.

If the applicant appears eligible for…	Then …
CalWORKs and/or CalFresh,	• advise the applicant of their potential eligibility. • have the applicant modify the SAWS 1 if they wish to apply for additional types of aid. • document in case comments that the applicant was advised of potential eligibility for the aid if the applicant does not want to apply for additional aid.
SSI/SSP	• refer the applicant to the Social Security Administration (SSA) if the customer does not refuse to apply for SSI/SSP. • document the referral in case comments. • proceed with the eligibility determination of any other program for which the applicant may be eligible, pending SSI/SSP determination.

04.02.03C Review of Potential County Medical Services (CMS) Eligibility

Adults between the ages of 21 and 64 who have no linkage to any Medi-Cal program shall be advised:

- That they have no apparent basis of eligibility for Medi-Cal
- Of their right to complete a formal Medi-Cal application even though they have no apparent Medi-Cal eligibility
- Of the County's CMS program and provide the CMS brochure

CMS is the County's safety net program for adults who are **NOT**:

- Determined linked to Medi-Cal eligibility
- Enrolled in Medi-Cal
- Enrolled in Medicare
- Enrolled in Covered California Health Care Plan or in any health care plan that meets the Minimum Essential Coverage (MEC) requirement under the ACA.

04.02.03D Applicant's Responsibilities

Applicants or representatives are responsible for providing essential verifications and reporting certain changes in a timely manner. Responsibilities include:

- Completing all documents required in the application process or in the determination of continuing eligibility.
- Providing all verifications requested by the Human Services Specialist (HSS) needed to determine eligibility and SOC, as specified in MPG 04.07.
- Report all facts that pertain to the determination of eligibility and SOC.
- Report within 10 days any changes in income, assets or living situation which pertain to the determination of eligibility or SOC.
- Cooperate fully in any investigation required for quality control.
- Report and use other health coverage available to the individual or family.
- Promptly notify any changes in residence from one county to another within the state. Inter-County Transfer (ICT) procedures are described in MPG 03.02.

- Complete all the forms necessary to process a medical support referral to California's Department of Child Support Services (DCSS).
- Cooperate with DCSS Medical Support Enforcement (MSE) program.

04.02.03E MSE Program Referral

Medi-Cal applicants must cooperate with the MSE program when requesting Medi-Cal for a child born out of wedlock or with an absent parent. A customer must complete all the forms necessary to process a medical support referral to DCSS. Refer to MPG 04.18 for forms and referral procedures.

Determine a beneficiary who refuses to cooperate without good cause with the MSE program to be an ineligible member of the Medi-Cal Family Budget Unit (MFBU).

Program Impacts:
None

References:
MEM 50184
ACWDL 91-98, 20-04
MEDIL I 13-09 16-05

Sunset Date:
This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:

4-21-21

Rick Wanne, Director
Self-Sufficiency Services

Acceptable Statement of Facts (SOF)	Number	Page
	04.02.04	1 of 2

Revision Date:
04/01/2021

Background:
A Statement of Facts (SOF) is required to determine an applicant's eligibility to Medi-Cal.

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

Policy:
04.02.04A Acceptable SOF
The following forms may be accepted as an application and SOF for Medi-Cal:

Form	Usage
CCFRM604 – Single Streamlined Application	• Serves as an application for Medi-Cal benefits • Does not require a SAWS 1
Electronic Statement of Facts from MyBenefitsCalWIN (MyBCW) or Covered California (CA)	
MC 210 (rev 02/2010 or later) – Medi-Cal mail-in	
MC 321 HFP – Healthy Families/Medi-Cal Joint Application	
SAWS 2 Plus – Application for CalWORKs, CalFresh, and/or Medi-Cal/Health Care Programs	• May be used in lieu of the Medi-Cal SOF • Page 1 is the equivalent of the SAWS 1
CF 285 – CalFresh Application	• May be used in lieu of any other MC application when a CalFresh recipient requests a Medi-Cal evaluation within 12 months from the date of the CalFresh application • Requires completion of Request for Tax household Information (RFTHI)

Note: The SOF may also be used to evaluate the customer for Covered California Advance Premium Tax Credits (APTC) and Cost Share Reduction (CSR).

Program Impacts:
None.

References:
CCR Title XXII, Sections 50159 and 50161
42CFR 435.907(f)
W&I Code 14005.37(r)
ACWDLs 03-35 and 03-40

Sunset Date:
This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:

4-21-21

Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
04/01/2021

Background
This section provides regulations regarding who may complete and sign the Statement of Facts (SOF).

Purpose:
This section is revised to provide clarification on defining a knowledgeable person and methods of establishing competency.

Policy:
04.02.05A Who May Complete and Sign the Statement of Facts
While anyone who knows of an individual's need may apply for Medi-Cal on that individual's behalf by completing and filing the SAWS 1, the following individuals may complete and sign the Medi-Cal SOF:

- Applicants
- Adults in the applicant's household as defined by the household composition regulations
- Family
- An Authorized Representative (AR)
- For incompetent or incapacitated individuals, someone who is acting responsibly on behalf of the applicant
- The tax filer for the household

An AR must be properly appointed by the customer in order to act on their behalf, including signing the application. For example, an AR may sign the Single Streamlined Application on behalf of the customer; however, the "Authorized Representative" section of the Single Streamlined Application or another acceptable AR appointment method must still be signed by the customer using the approved methods outlined in 04.02.07.C.

A Certified Enrollment Counselor (CEC), application assistor, or insurance agent is not automatically considered an AR. They must be appointed as one by the customer.

Note: If the applicant is incapable of signing because of a physical condition, the applicant should provide the information; and then a relative, a knowledgeable person, or a Human Services Specialist (HSS) can sign the SOF. If the applicant can only make a "mark," a witness must also sign the SOF.

04.02.05B Competency
Competency is defined as "being able to act on one's own behalf in business and personal matters." Incompetence does not mean the applicant does not understand English or the application process or that the applicant just prefers to have someone else act on their behalf. Incompetence generally refers to an applicant's mental condition. Regulations do not require that the court or some other entity must first declare that a person is incompetent.

The following individuals may complete the application for incompetent applicants:

- Spouse
- Conservator, guardian, or executor (if there is one)

- A relative or person with knowledge of the case (can be broadly interpreted, nursing facility staff may have sufficient information and knowledge of the circumstances when no family member or protective services is involved)
- Representative of a public agency or county department (requires diligent search)

When a relative or friend with personal knowledge of the applicant applies indicating that the applicant is comatose, senile, or incompetent and completes and signs a sworn statement to this effect, then the HSS may process the application with that individual acting on behalf of and as the representative for the applicant. When the SOF is completed and signed by a representative, give them form DHCS 7068 to complete.

When the applicant is in long-term care (LTC), the HSS may reach a competency decision by one of the following methods:
- Calling the LTC facility and inquiring as to the customer's ability to handle their own affairs
- Obtaining a statement from the customer's physician
- Visiting the facility to communicate with the customer or staff
- Obtaining satisfactory evidence from family members which provides the HSS with sufficient reason to believe that the LTC individual is incapable of handling their own affairs. Such evidence may include conservatorship documents, or a written statement from a family member stating that the individual is unable to complete the application process without assistance

Note: If a physician's statement is provided, that statement alone supersedes all other methods of determining competency.

04.02.05C Defining Knowledgeable Person

When the SOF is completed and signed by someone other than the applicant or their spouse, that person assumes the responsibilities of the applicant and is liable for declarations, made on behalf of the applicant.

The person must have real, personal, and specific knowledge of the applicant's current circumstances and relevant only for the month(s) the customer is requesting benefits. Prior personal knowledge of the incompetent individual is irrelevant. The person must be able to answer vital income and property questions with a response other than "unknown," however, they must be given an opportunity to exercise due diligence in obtaining and submitting the necessary information. If the knowledgeable person does not have all the information required to make an eligibility determination, conduct a diligent search for the remainder.

If the person signing the SOF willfully conceals or fails to report essential facts, that person, not the customer could be referred for a fraud investigation. If the knowledgeable person is found to not have real, personal, and specific knowledge of the applicant's affairs, determine if another knowledgeable person, such as a relative or an LTC representative (if the applicant is in LTC) exists. If no such person is available, sign and complete the SOF.

04.02.05D Diligent Search

If it is determined that protective services are not needed, undertake a diligent search of known information to determine eligibility. Complete and sign the SOF. The SOF must be countersigned by

another county representative who confirmed, by personal contact, the inability of the applicant to act on their own behalf. The Supervising Human Services Specialist (SHSS) may make a phone call to the facility to confirm the customer's incompetency and countersign the SOF. Refer to MPG 04.09.01 for diligent search procedures.

04.02.05E Child Applicants

The following individuals may apply for a child:

- Parents (custodial or non-custodial)
- Any adult in the Advance Premium Tax Credit/Cost Sharing Reduction (APTC/CSR) tax household or non-filer household
- Non-custodial Mother or Father not in their tax household
- Family member such as Grandparent
- Authorized representative
- Someone acting responsibly for the child such as a family friend

The person or representative of the agency having legal responsibility for the child completes and signs the SOF. A non-related adult who has care and control of the child may complete the SOF if the child is not in need of protective custody and is not able to act as an adult. To determine if the child needs protective custody, complete a referral to Child Welfare Services (CWS) and comment in the case record that a referral to CWS was made.

The child applicant completes the SOF when any of the following applies:

- The applicant is 18-21 years of age, not living with a parent or caretaker relative, and the applicant's parents are not claiming them for tax purposes
- The applicant is 14-18 years of age, not living with a parent or caretaker relative and who does not have a parent, caretaker relative or legal guardian handling their financial affairs
- The applicant is a child applying for Minor Consent Services and meets the requirements specified in MPG 04.04

04.02.05F Tax Dependents

The following individuals may apply for tax dependents:

- The tax dependent
- Tax filer that claims the tax dependent
- Another tax dependent within the applicant's tax household
- Adult who is in the applicant's tax household
- An authorized representative
- Someone acting responsibly for the dependent if they are incapacitated

04.02.05G Protective Services Referrals

Assume total control of a Medi-Cal case and refer the case to protective services to determine if a Public Guardian (PG) or Adult Protective Services (APS) staff should become the responsible agent when the following conditions are met:

- The applicant is unable to apply for or complete a Medi-Cal eligibility determination process due to incompetence, or being in a comatose condition or suffering from amnesia; and
- The applicant does not have a spouse, conservator, guardian, or executor; or

- An applicant has a representative assuming case management responsibilities due to the applicant's mental condition, but the representative is non-cooperative, not acting in the best interests of the applicant, (for example, misappropriating income or property of the applicant) or contact is lost

Note: For incompetent Craig v Bonta beneficiaries only, if the beneficiary does not have a representative, complete form 14-78 HHSA, PUBLIC ADMINISTRATOR/CRAIG V BONTA REFERRAL. When completing the section of the form that asks "State examples of probable cause…" write the reason why the beneficiary is unable to handle their own affairs. The original of the 14-78 HHSA is to be forwarded to Mail Stop O-95, attention: Craig Liaison. Image a copy of the form.

04.02.05H Non-Cooperation of the Acting Individual

Do not deny LTC applicants Medi-Cal solely due to the noncooperation of the individual acting on their behalf.

- Unless a suitable individual is located, the non-cooperative individual should be notified that the application is denied
- File a second SAWS 1 as well as an application for retroactive coverage if the second SAWS 1 is filed after the month in which the initial SAWS 1 was submitted
- Proceed with the diligent search procedures to make the eligibility determination

04.02.05I Exploitation of LTC Individual's Finances

When it appears that the LTC individual's income may be being exploited by another person:

- Notify the agency where the income originates (for example, Social Security Administration (SSA), Veterans Affairs (VA), etc.)
- Treat the income as unavailable and do not use in determining the share of cost (SOC) if the HSS receives information that the income will temporarily cease until a representative payee is found

When it appears that the LTC individual's resources (including bank account) may be being exploited by another person:

- Refer case to PG, APS or LTC ombudsman
- If the PG, APS or LTC ombudsman indicate that they are taking steps to recover the property, treat it as unavailable until the property has been seized

Program Impacts:

None.

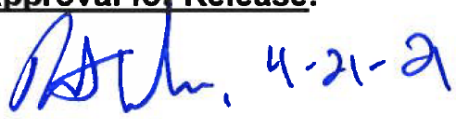
References:

CCR Title XXII, Sections 50032, 50159 and 50161
ACWDLs 94-62, 02-28, 17-12, 20-28

Sunset Date:

This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Splitting Cases at Application	Number	Page
	04.02.06	1 of 2

Revision Date:
04/01/2021

Background:
This section provides direction for splitting cases at application when an adult who is not the tax dependent, spouse, or unmarried parent of a common child is requesting Medi-Cal on the same application.

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

Policy:
While anyone who knows of an individual's needs may apply for Medi-Cal on that individual's behalf, the Medi-Cal Statement of Facts must be completed and signed by one of the following:

- the applicant
- the spouse
- the unmarried parent of a common child
- their household tax filer

Adults who do not meet the criteria above must apply for themselves and should be on their own case.

If the adult is also requesting Medi-Cal, preserve the request date and provide a Medi-Cal application.

Procedure:
04.02.06A Required Action
Take the following steps to split the case at application:

Step	Action
1	Remove the non-tax dependent from the case by marking them as not requesting and not a tax dependent.
2	Complete a SAWS 1 to preserve the earlier application date.
3	App-reg a new application for this individual.
4	Mail the Single Streamlined Application to the individual.
5	Follow the procedures outlined in 04.02 for Mail-In applications.

04.02.06B Examples
Example 1:
Applicant applied for Medi-Cal on November 1. They are also requesting for their sibling. They claim they file taxes separately.

- This application belongs to the applicant since they signed the Single Streamlined Application
- Open a case for the sibling on their own case and preserve the request date using the receipt date (Nov. 1) on their application
- Send the sibling a Single Streamlined Application including the Mail-In packet

Example 2:
Applicant applied for Medi-Cal on November 15 and requested for their 30-year-old child. They claim that they file taxes separately.

- This application belongs to the applicant since they signed the Single Streamlined Application.
- Open a case for the child on their own case and preserve the request date using the receipt date (Nov. 15) on their application
- Send the child a Single Streamlined Application including the Mail-In packet

Programs Impacts:
None.

References:
DHCS Clarification

Sunset Date:
This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:
4-21-21
Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
04/01/2021

Background:
A customer can appoint an individual or organization to assist them with Medi-Cal applications and redeterminations. Reminder: Authorized Representatives (AR) are appointed by competent customers. This section covers requirements relating to ARs.

Purpose:
This section was updated to include clarifications from All County Welfare Directors Letter (ACWDL) 20-28 regarding Medi-Cal AR policies and procedures.

Policy:
04.02.07A Scope of Duties
The Medi-Cal customer defines the scope of duties each AR may have and may specify that the AR assume any combination of the following duties:

- Assist in the application and redetermination processes
- Review the case record with or without the customer present (with some limitations as stated in MPG 02.01.07)
- Submit verification to and obtain information from State Programs - Disability Determination Services Division (SP-DDSD)
- Submit/Provide requested verifications, medical records, and other information to the county and/or SP-DDSD
- Obtain information from the county and SP-DDSD regarding the application status
- Act on behalf of the customer in the application, redetermination, and ongoing Medi-Cal processes
- Receive copies of notices. The customer can specify how many, if any, notices the AR must receive
- Sign the application or complete and submit the renewal form on behalf of the beneficiary

ARs must be properly appointed by the customer to act on their behalf, including signing the application. For example, an AR may sign the Single Streamlined Application on behalf of the customer; however, the "Authorized Representative" section of the Single Streamlined Application or another acceptable AR appointment method must still be signed by the customer using the approved methods outlined in 04.02.07C.

ARs have the same rights as the Medi-Cal customers they represent to request Medi-Cal information and forms in the threshold language or accessible format they prefer (such as Braille or Large Font), when they are authorized to receive notices or other correspondence.

The AR authorization does **NOT** grant the AR the authority to access other programs or assign another AR to represent the customer. When the beneficiary does not indicate scope of duty preferences, or the AR form does not have them, the AR has full authority to complete the duties listed above with one exception. The exception is that the AR would not automatically receive copies of all notices. The beneficiary must request that affirmatively.

AR designations are not required for individuals with legal authority to act on behalf of the customer under state law. This may include, but is not limited to, conservatorship, guardianship, and Power of Attorney. Documentation of this can be provided electronically, by fax, by mail, or in person.

Note: A signed authorization is not required for the applicant to have someone accompany and assist them in the application process. ARs are appointed by competent customers only. No AR appointment is required for a customer's spouse or the parent of a minor child living in the home.

04.02.07B Acceptable Authorized Representative Forms

The following are acceptable Authorized Representative forms:

- Form MC 382 – Appointment of Authorized Representative
- The AR section of the Single Streamlined Application (electronic (Covered CA portal) or paper)
- The AR section of the SAWS 2 Plus
- The DPA 19 is acceptable for appointing an AR during the appeals process

ARs appointed via the MC 306 or other valid forms prior to 10/1/2019 remain valid until they are cancelled by the customer or AR. If an MC 306 or other valid form is received beginning 10/1/2019, it is considered a valid AR appointment form, however, complete the MC 382 using the information provided on the MC 306 and mail to the AR and beneficiary as part of the initial notification process in MPG 04.02.07.F. However, an MC 306 that expired before 1/1/2014 is not valid and a new authorization is required.

If the AR is appointed by the Single Streamlined Application or the SAWS 2 Plus, attempt to contact the customer to determine the scope of duties they wish to assign the AR, complete the MC 382 with the customer, and notate the attempt and result in the case comments.

If the Human Services Specialist (HSS) cannot contact the customer to determine the scope of duties, the AR will have full authority (except for automatically receiving copies of all notices) and the HSS must document all attempts to contact the customer in the case file and complete the MC 382.

Note: Do not send the CSF 14: Authorization for Release of Information-AR, for customers to appoint a Medi-Cal AR as this is not a Medi-Cal form. However, if a signed CSF 14 is received from the customer, appointing a Medi-Cal AR, honor that form and process it, until the Department of Health Care Services (DHCS) provides further direction.

04.02.07C – Methods to designate an AR

- The AR appointment can be made by phone, in person, by mail, or electronically.
- To designate an AR, the county must accept electronic signatures, including telephone recorded signatures as well as handwritten signatures transmitted via fax or email to appoint an AR and specify the scope of the AR's duties.

When completing the MC 382 over the phone:

- Complete the form with the customer and mark their preferences
- Read section D "Acknowledgement and Signatures" to the customer. This constitutes a telephonic signature
- Narrate in the case file describing how the appointment form was completed
- Mail a copy of the completed form to the customer and AR. It does not need to be signed and returned

Note: The AR is not required to sign the MC 382.

04.02.07D – Organizations Appointed as AR

- Organizations can be appointed as authorized representatives, but form MC 383 – Authorized Representative Standard Agreement for Organizations must be signed by the individuals from the organization before they can serve as an AR
- The MC 383 may be provided telephonically, electronically, by fax, in person, or by mail
- When an AR appointment for an organization is received without a MC 383, work with the organization to complete the form (for example, complete the 383 over the phone, mail the form to organization, or let the organization know where it is available on the DHCS website)
- Keep a copy of the MC 383 in the case record
- When mailing forms to the AR, mail them to the organization address
- The MC 383 is not an appointment form and the customer does not complete it
- When taking the MC 383 over the phone:
  - Complete the form with the AR and mark their responses
  - Read the agreement section to the AR. This constitutes a telephonic signature
  - Make a case comment describing how the 383 form was completed
  - Make a copy of the completed form to send to the AR

There is no limit to the number of ARs that a customer may have. If there is conflicting information from different ARs, the customer must clarify the information or appoint a lead AR.

DHCS does not expect staff to evaluate organizations for conflicts of interest. If staff receive information from a customer that their appointed AR has a conflict of interest not disclosed to them, please elevate the information to Medi-Cal program.

04.02.07E Medi-Cal Eligibility Data System (MEDS) AR Field

Do not use information from the AR field in the INQD screen in MEDS as verification of current AR appointment. If contacted by an AR listed in the MEDS INQD screen, and no current AR authorization is in the case file, then contact the customer (via the customers preferred method of contact) to confirm if they would like the individual, or organization to act as their AR. Follow the process outlined in 04.02.07.C when completing the AR appointment over the phone.

04.02.07F – Changes

- The AR or customer may cancel the AR appointment at any time
- Only the customer may change the scope of duties
- Changes can be completed over the phone, electronically, in person, or in writing

04.02.07G – Noticing Requirements

At the initial appointment of an AR, send the following to the AR and the customer within **TEN DAYS** of receiving the information:

- **MC 380 – Notice of Authorized Representative Appointment**
- A copy of the **MC 382 Appointment of Authorized Representative**
- Send a copy of the **MC 219 - Rights and Responsibilities for Medi-Cal** to the AR only. Narrate the above actions in the case comments

When cancelling or changing the appointment of an AR, mail the **MC 381 - Cancellation or Change to a Medi-Cal Authorized Representative** to both the AR and beneficiary. Include a copy of the AR

authorization with any disability packet sent to DDSD. If received after the submission of the packet, send the authorization with an MC 222 form.

04.02.07H Effective Dates

The appointment of an AR remains in effect until the customer cancels or modifies the authorization, or the acting AR informs the county that they are no longer acting as AR. The appointment is valid for 90 days after a denial or discontinuance unless:

- The appointment is canceled by the AR or customer
- The HSS determines that good cause exists for the AR appointment to continue because it's in the best interest of the customer
- A fair hearing is filed

The appointment will continue through the fair hearing process to ensure the AR can assist with reinstating benefits.

If the customer loses competence or dies after appointing an AR, honor the AR appointment made prior to the loss of competence. However, a spouse or any individual with legal documentation (such as a power of attorney, executor of their estate, or the guardian/conservator) will have ultimate authority for the deceased or incompetent customer's Medi-Cal case, and may cancel an AR appointment.

04.02.07I Durable Power of Attorney (DPA)

A power of attorney is a "written instrument, however denominated, that is executed by a natural person having the capacity to contract and that grants authority to an attorney-in-fact. A power of attorney may be durable or nondurable." A DPA contains a clause which states that it will not be affected by the incapacity of the principal (person who appoints the attorney-in-fact who is the individual acting on the principal's, or applicant's behalf), or it may state that the DPA will become effective at the time the principal becomes incapacitated.

Types of DPA

There are many forms of DPA. The HSS must review the DPA document to determine what authority has been given to the designated attorney-in-fact. Some examples of transactions that the attorney-in-fact can handle include:

- Buying and selling property
- Managing bank accounts, bills, and investments
- Filing tax returns
- Applying for government benefits

04.02.07J Loss of Contact with AR

If unable to reach the AR after reasonable attempts (via the ARs preferred method of contact) have been made, contact the customer (via their preferred contact method) to notify them of the county's inability to reach the AR and the reason that the county is contacting the AR, for example, verification needed. Work directly with the customer to obtain the necessary information. The AR's appointment would continue and would not terminate unless requested by the customer or AR. Request updated contact information if the AR makes contact.

References:
ACWDLs 17-12, 18-26, 18-26 Errata, 20-28
DSS Manual 22-085, 19-005
WIC 14014.5(d)(2)

Sunset Date:
This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:

4-21-21

Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
04/01/2021

Background:
The following section defines the roles and responsibilities of Public Guardians, Conservators or Representatives acting on behalf of incompetent individuals.

Purpose:
This section was updated to include clarifications from All County Welfare Directors Letter (ACWDL) 20-28, regarding the requirements of the DHCS 7068: Responsibilities of Public Guardians/Conservators or Applicant/Beneficiary Representatives, and Authorized Representative (AR) appointment for individuals with legal authority to act on the behalf of the customer.

Policy:
04.02.08A Definition

- A **Conservator** is a person appointed by the court to act as the guardian, custodian, or protector of another
- **Public Guardian** is a county agency acting as a public entity, appointed to act on behalf of people who have lost their ability, either mentally or physically, to handle their own affairs. The Public Guardian acts as the individual's advocate. No private person is allowed to be a "public guardian"
- A **Representative** (Key Person) is a person acting on the behalf of another who is incapable of handling their own personal or business affairs. The representative must have specific and personal knowledge of the incompetent individual's current circumstances. The Representative may be a friend, relative, or someone else who has known the customer and will act responsibly on their behalf. (Human Services Specialist (HSS) should evaluate if the individual meets this criteria)

Note: A Key Person/Knowledgeable Person cannot appoint an AR, without the signature of the customer. For example, an LTC applying for an incompetent individual cannot appoint an AR per MPG 04.02.07.

04.02.08B Roles of Conservators and Public Guardians
Conservators and Public Guardians may:

- Manage and control the conservatee's estate
- Perform all the tasks that a Medi-Cal customer would be required to perform
- Designate an AR to assist them as any other customer may do and like any AR, the functions of the designated AR would be restricted to those stipulated on the MC 382 form
- Act fully for the conservatee

AR appointment **is not** required for individuals who have provided verification of legal authority to act on behalf of the customer under state law. This may include, but is not limited to, conservatorship, guardianship, and Power of Attorney. Documentation of this can be provided electronically, by fax, by mail, or in person.

If the HSS believes that the AR is not acting in the best interest of the conservator or the conservatee, the HSS will so advise the conservator, and suggest that they revoke the MC 382 and appoint another AR if they so desire. The conservator is, however, ultimately responsible for the customer and is subject

to being removed as the conservator if they act irresponsibly. The HSS should refer these situations to the Public Guardian's Office or the State Medi-Cal Fraud Bureau.

04.02.08C Reporting Responsibilities

It is very important that the public guardian/conservator or customer representative (key person) be aware of their ongoing responsibilities for timely reporting changes to income, property, health coverage or any other changes that may affect eligibility of the customer whom they represent.

04.02.08D Required Forms

- DHCS 7068: Responsibilities of Public Guardians/Conservators or Applicant/Beneficiary Representatives
- MC 219: Important Information for Persons Requesting Medi-Cal

Give or mail the required forms to the public guardian, conservator or representative (key person) at initial application and at each redetermination. The signature, address, and telephone number of the representative (key person) is required on the DHCS 7068. The signed form must be retained in case file and a copy given to the representative. The DHCS 7068 **is not** required for individuals who have provided verification of legal authority to act on behalf of the customer under state law. This may include, but is not limited to, conservatorship, guardianship, and Power of Attorney.

When the DHCS 7068 or the AR forms are submitted for an incompetent individual, a review must be completed to validate that this case/referral meet the criteria of a diligent search; otherwise, it is not a diligent search, or the representative/key person are questionable.

The DHCS 7068 does not give the Public Guardian, Conservator, or Representative any authorization to receive case information. This form only provides their reporting responsibilities as someone who has volunteered to assist an incompetent customer to apply for and retain Medi-Cal.

04.02.08E Mailing Notices/Correspondence

It is not necessary to send a copy of a Notice of Action (NOA) or correspondence to the incompetent Medi-Cal customer.

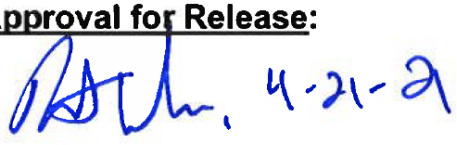
References:

ACWDLs 17-12, 20-28

Sunset Date:

This policy will be reviewed for continuance on or by 04/30/2024.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
04/01/2021

Background:
United States (U.S.) citizenship and non-citizen status is used to determine the level of benefits a Medi-Cal applicant is potentially eligible for.

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

Policy:
Applicants who claim to be U.S. citizens/nationals or to have satisfactory immigration status (SIS) on their application will have their citizenship or immigration status electronically verified via the California Healthcare Eligibility Enrollment, and Retention System (CalHEERS) through the Federal Data Services Hub per 04.02.22. Additionally, self-attestation of citizenship via telephonic signature and electronic signature for applications submitted on-line will be an acceptable form of attestation, see MPG 04.07 for this process. Medi-Cal eligibility should not be delayed, denied, or discontinued solely for failure to respond to a request for the Statement of Citizenship, Alienage, and Immigration Status form (MC 13).

Procedure:
04.02.09A When Documentation is Not Required
The MC 13 form or any additional citizenship/immigration status documentation is not required when:
- The applicant claims to be U.S. citizen/national or to have SIS AND whose citizenship/immigration status is verified via electronic means, including California birth record match or the Social Security Administration (SSA) citizenship verification process
- They are secondary adults on a case who did not sign the application and the primary applicant attests the individual is a U.S. citizen/national AND their citizenship/immigration status is verified via electronic means, including California birth match, or the SSA citizenship verification process
- The applicant is not claiming U.S. citizenship or SIS

04.02.09B Verbal Attestation
The MC 13 form is not required for immigrants who verbally attest to an immigration status and have associated documentation that is sufficient to request verification via electronic means or the Systemic Alien Verification for Entitlement (SAVE) verification process.

The MC 13 form will only be completed:
- During the application process when it is unclear, or staff are unable to determine from the application or verbal statement if the individual is claiming U.S. citizenship or SIS
- During the redetermination, a change report or any other time after the initial application is approved when unable to determine if the individual is claiming U.S. citizenship or SIS and only after an *ex parte* review of all the information available to the county
- When the applicant wants to claim the last category of Permanently Residing in the United States under Color of Law (PRUCOL). Individuals who claim this status are not required to provide additional documentation

04.02.09C Reasonable Opportunity Period (ROP)

An otherwise eligible applicant attesting to citizenship/satisfactory immigration status, pending verification of their status will be granted full scope Medi-Cal benefits during the 90-day ROP to provide.

If verification is …	Then …
submitted which states SIS or applicant's status is verified by current policy,	full-scope benefits continue.
provided or final determination is received but does not prove SIS,	reduce benefits to the appropriate level with adequate and timely notice.
not submitted,	

Note: Former Foster Youth (FFY) who aged out of Foster Care on or after their 18th birthday are eligible to full scope Medi-Cal from age 18 up to age 26 regardless of immigration status. FFY should remain full scope Medi-Cal even if U.S. citizenship/SIS is not verified during the 90-day ROP, see MPG 05.15.10B. See MPG 04.13.05 for information on restoring full scope benefits.

04.02.09D Failure to Respond to a Request for the MC 13 Form

When a MC 13 form is necessary to determine if a full-scope Medi-Cal beneficiary is attesting to citizenship/SIS and the form is not returned:

- If age 26 or over, reduce benefits to the appropriate scope with proper notice
- If under the age of 26, remains full-scope Medi-Cal based on Senate Bill 104
- If FFY is age 18 up to age 26, remains full-scope Medi-Cal

Program Impacts:

None

References:

ACWDL 14-41, 15-32, 16-12 17-01, 18-16, 19-23, 20-17
MEDIL I 14-21

Sunset Date:

This policy will be reviewed for continuance on or by 04/30/2024.

Approval for Release:

4-21-21

Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
04/01/2021

Background:
Prior to the passage of the Affordable Care Act (ACA), individuals requesting retroactive Medi-Cal coverage were required to complete and submit the Supplement to Statement of Facts for Retroactive Coverage/Restoration MC 210 A form. With the implementation of the ACA, staff can now accept the form via phone, in person, by mail, or electronically. The MC 210 A form may be signed virtually via electronic signature, and telephonically recorded signature. Staff may also accept the MC 210 A with a handwritten signature transmitted via fax or email.

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

Policy:
An applicant/beneficiary (including a minor consent applicant) may request retroactive Medi-Cal for any of the three months preceding the month of application. If not requested at application, the request for retroactive Medi-Cal coverage must be made within one year of the month for which retroactive coverage is requested. Qualified Medicare Beneficiary (QMB) applicants/recipients are not eligible to retroactive Medi-Cal.

The request for retroactive Medi-Cal may be made:

- On the Statement of Facts (SOF)
- On the MC 210A
- By submitting a written request
- By submitting a verbal request

Procedure:
04.02.10A Requesting for Retroactive Medi-Cal
Upon receipt of the request, have the applicant complete the Supplement to the SOF for Retroactive Coverage/Restoration (MC 210 A) form. When the applicant requests retroactive Medi-Cal only, have the applicant complete the SOF for the earliest retroactive month and the MC 210 A for each additional retroactive month. These may be completed with information the applicant/beneficiary provides over the phone, in person or through any other avenue available for those applying for Medi-Cal.

04.02.10B Retroactive Medi-Cal for Presumptive Eligibility (PE) Recipients
The PE program allows qualified providers to grant immediate temporary Medi-Cal coverage to low-income patients pending their formal Medi-Cal application. Because of the limited scope of benefits that PE covers, most PE recipients will require retroactive Medi-Cal to cover some services received during their PE eligibility period.

When staff become aware that an applicant is a PE recipient, provide the applicant with information on how to apply for Medi-Cal and the timeframes for applying for retroactive Medi-Cal coverage. Inform PE recipients that they may apply for retroactive Medi-Cal coverage within one year of the month for which retroactive coverage is needed. Additionally, they do not have to apply for or be approved for ongoing Medi-Cal to apply for retroactive coverage.

04.02.10C Retroactive Medi-Cal for County Medical Services (CMS) Recipients

An application for retroactive Medi-Cal must be completed for an applicant who is identified as having CMS coverage during any month in the retroactive period. Review the applicant's statement on the SOF to see if the applicant declares CMS coverage and also check for CMS eligibility on an Information Data Exchange (IDX) screen print (see Desk Aid 39) for cases originating from Hospital & Community Support Services (HCSS) to see if the applicant was in receipt of CMS in the retroactive period.

Since the County can be reimbursed for medical expenses covered by CMS, a CMS recipient who may have a disabling condition that potentially links them to Medi-Cal must apply for and cooperate in completing an application for disability linked Medi-Cal. These applications must be referred to the State program Disability Determination Service Division (DDSD), Refer to MPG 05.04. Encourage and assist the CMS recipient as needed to complete the application. If the CMS recipient fails to cooperate in completing the Medi-Cal application, narrate the reason why the retroactive application was not completed. If a CMS Medi-Cal Referral form (HHSA: CMS-5) was provided, complete the form and forward to CMS as indicated on the form distribution.

04.02.10D Retroactive Medi-Cal for Supplemental Security Income/State Supplemental Program (SSI/SSP) Recipients

Title 22, California Code of Regulations, Section 50148 states that a request for retroactive Medi-Cal may be made "in conjunction with, or after, application for public assistance or Medi-Cal". An application for "public assistance" includes an application for SSI/SSP benefits. A request for retroactive coverage must be made within one year of the month the eligible expenses were incurred.

Based on this regulation, the month of application is established along with the SSI/SSP application, for retroactive Medi-Cal purposes, even if aid (in this case, SSI/SSP) is never approved for the application month. The approval of SSI/SSP benefits is not necessary for the determination of the three-month retroactive Medi-Cal eligibility, as in any Medi-Cal only application.

Below are three forms of retroactive Medi-Cal application that may be processed:

1) Retroactive to SSI Approval Month

An SSI recipient who requests Medi-Cal coverage back to the month of SSI approval which may be several months prior to the request. This kind of request should be made within six months of the decision or four months from the date of the first State Data Exchange (SDX) update.

Since the State cannot establish eligibility in the Medi-Cal Eligibility Data System (MEDS) for SSI recipients prior to their initial approval action:

- Obtain verification from the Social Security Administration (SSA) indicating the person's SSI/SSP date of eligibility and a request for Medi-Cal coverage for that period
- Attach the SSA verification to a 14-28 HHSA with the appropriate section completed and submit them to the Family Resource Center (FRC) MEDS operator to establish eligibility for that period
- Issue an immediate need paper card if the Benefits Identification Card (BIC) has not been received by the beneficiary and an immediate need situation occurs
- Issue a Letter of Authorization (MC 180) and/or Eligibility Letter of Authorization (LOA)-Share of Cost (MC180-2) if the retro period is over one year. Refer to MPG 14.03 for details on issuing a MC 180/ LOA

2) Retroactive to SSI Application Month

An individual who is approved SSI with an effective date after the date of SSI application. This occurs when the individual was not financially eligible for SSI during these months. The SSI award letter or other verification of entitlement may show a disability onset date prior to the SSI effective date. If the individual is determined disabled or there is other linkage in the retro period, evaluate the individual for Medi-Cal, if otherwise eligible.

3) Month(s) Prior to SSI Application Month

This type of request may require that you submit a disability referral to DDSD if no other Medi-Cal linkage exists. If an individual is approved (or denied) SSI and requests Medi-Cal for the three months immediately preceding the month of SSI application:

- Complete the MC 210A form from information the customer provides over the phone, in person or through any other avenue available for those applying for Medi-Cal
- Obtain verification of the SSI application date. Such verification may be an award/denial letter from SSA indicating the date of application and date of approval/denial, or a copy of the individual's original SSI application form

Before requesting an SSI/SSP award letter from the applicant, first attempt to obtain the SSI/SSP information from the SDX report located on the SDX1 through SDX5 screens in MEDS. If information is unavailable, request a copy of the SSI/SSP Award Letter along with any additional information needed to make an eligibility determination from the SSI/SSP recipient.

Note: Do not ask an applicant for information that is already available to the County from the SDX report or that is unnecessary for a Medi-Cal determination.

The SDX screens can be accessed in MEDS by clearing the screen, then typing SDX, and entering the Social Security Number (SSN) of the individual. The following provides a description of the data included in the screens:

SDX Screens	Description
SDX1-CLIENT DATA	Contains MEDS identification (ID) number, person's name, client index number, health insurance claim number, BIC issue date, birth date, language spoken/written and birthplace
SDX2-ADDRESS DATA	Contains MEDS ID number, person's name, address, and telephone number
SDX3-CLIENT INFORMATION	Contains MEDS ID number, person's name, Title II Claim number, SSI application date, CA residency date, and disability on-set date
SDX4-CLIENT INCOME STATUS DATA	Contains MEDS ID number, person's name, unearned income, and eligibility determination data
SDX5-CLIENT INCOME/STATUS DATA	Contains MEDS ID number, person's name, eligible spouse SSN, ineligible spouse/parent data, spouse/parent earned income, and unearned income

SSI/SSP recipients eligible under the Aged & Disabled Federal Poverty Level (A&D FPL) Program are eligible for Medi-Cal in the month of application or in the month of the first day in which their SSI/SSP

eligibility criteria were met. MEDS has been programmed to provide eligibility on this basis for the month of application.

04.02.10E Determining Retroactive Medi-Cal Eligibility for SSI/SSP Applicants Pending SSA Disability Determination

Screen the SSI/SSP applicant to any other Medi-Cal program while the Social Security Disability Insurance (SSDI) application is pending at SSA.

If it is determined that the SSI/SSP applicant is …	**Then …**
Eligible for retroactive Medi-Cal under any other Medi-Cal program,	The effective date for Medi-Cal eligibility is the first day of the SSA application month and retroactive Medi-Cal eligibility, if found eligible, applies to any of the three month(s) prior to the application month.
Not eligible for retroactive Medi-Cal under any other Med-Cal program,	Send a disability packet to DDSD for a disability determination. The disability packet must include an evaluation request for the retroactive month(s). Refer to MPG 05.04 for more information on processing disability cases.

04.02.10F Processing Requests Received at Intake

All requests for retroactive Medi-Cal are assigned according to FRC policy. Requests for retroactive Medi-Cal received at application shall be processed as follows:

Step	**Action**
1	Complete the MC210A form from information the customer provides over the phone, in person or through any other avenue available for those applying for Medi-Cal. If only retroactive Medi-Cal is requested, a SOF is completed for the earliest retroactive month and a MC210A for each additional retroactive month.
2	For income verification:
3	Determine eligibility and the share of cost (SOC).
4	Generate and mail appropriate notices.

If …	**Then …**
"no change" is indicated,	use income verification that is used to determine current month eligibility on the SOF for each of the retroactive months. This would also apply to self-employment income provided it adequately reflects actual monthly income.
change in income is reported,	request income verification for each retroactive month where a change in income is reported.

Reminder: Only one pay stub is required to verify income, if it adequately reflects the actual retroactive month(s) income. You may request further income verification if income reported is inconsistent with the income verification provided.

04.02.10G Processing Requests from Medi-Cal Beneficiaries

When a beneficiary requests retroactive Medi-Cal after a case has been granted:

- Complete the MC 210A form with information the customer provides over the phone, in person or through any other avenue available for those applying for Medi-Cal
- Image the MC 210A to the active case file

04.02.10H Processing Previous Denied Month(s)

The application for retroactive Medi-Cal will be denied when the applicant was previously denied for the requested month(s), unless the application was denied due to:

- An erroneous denial
- The applicant's failure to cooperate was due to circumstances beyond the control of the applicant

04.02.10I Cases Transitioning from Covered California (CA) Advanced Premium Tax Credits (APTC) to Medi-Cal

Beneficiaries who are enrolled in a Covered CA Qualified Health Plan (QHP) with APTC, and are then transitioned to Medi-Cal, may request retroactive Medi-Cal for the 3 months prior to the month of transition.

When Medi-Cal is granted retroactively for months that a beneficiary received APTC, the Medi-Cal beneficiary:

- Will not be required to repay QHP premiums for those months
- Is not entitled to a refund for premiums paid for QHP coverage
- Can claim the premiums paid during the months for which APTC payments were made

In addition, the QHP is considered the primary payer and Medi-Cal the secondary payer.

04.02.10J Beneficiary Reimbursement Process (BRP)

Provide information to beneficiaries who have paid out-of-pocket expenses for Medi-Cal covered services about the availability of the BRP (also known as the Conlan process).

Information about the BRP should be given to beneficiaries who have paid out-of-pocket expenses that occurred in the following time periods:

Time Period	Description
Retroactive	The 3-month period prior to the month of application for the Medi-Cal program
Evaluation	From the date of application for the Medi-Cal program until the date eligibility is established
Post-approval	The time period after eligibility is established

Beneficiaries, who have such paid expenses as noted above, should immediately contact the Beneficiary Service Center (BSC) at (916) 403-2007 (TDD [916] 635-6491) or visit the website at: http://www.dhcs.ca.gov/services/medi-cal/Pages/Medi-Cal_Conlan.aspx for more information. The BSC provides the customer with the necessary forms and instructions for filing a claim.

Program Impacts:

None

Reference(s):
MEPM LTR 274
ACWDL 02-43, 08-27E, 11-31, 16-08, 17-07
MEDIL I 14-16, 14-27
County Policy

Sunset Date:
This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:

4-21-21

Rick Wanne, Director
Self-Sufficiency Services

Processing Applications Where a Face-to Face Interview is Requested	Number	Page
	04.02.11	1 of 1

Revision Date:
04/01/2021

Background:
Applicants have the option of completing the interactive interview in person.

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

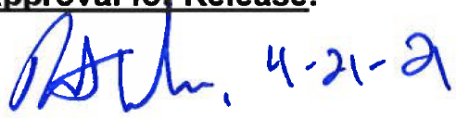
Policy:
A face-to-face interview with the applicant or person completing the Statement of Facts (SOF) is not required as part of the application process, except as noted in Article 4, Section 6. For applicants who choose to apply for Medi-Cal benefits by attending the face-to-face interview, the SOF shall be completed and signed by the applicant during the interview appointment.

Procedure:
During the face-to-face interview, determine the Medi-Cal program under which the applicant should be processed and explain the eligibility requirements for that program. Complete and review with the applicant the verification checklist which itemizes the verifications that the applicant must provide to determine eligibility as required by MPG 04.07. When the Human Services Specialist (HSS) determines that additional information/verifications are necessary, follow the procedures specified in MPG 04.07 when making the request.

Program Impacts:
None

References:
CCR Title XXII, Sections 50159 and 50161
42CFR 435.907(f)
W&I Code 14005.37(r)
ACWDLs 03-35, 03-40
MEDIL I 10-12

Sunset Date:
This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:

4-21-21

Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
04/01/2021

Background:
Counties have been instructed to simplify and expedite applications for other aid programs. This often allows a customer to use an application for multiple programs such as Medi-Cal.

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

Policy:
04.02.13A Request from CalFresh Recipients
A CalFresh customer may request a Medi-Cal evaluation by indicating on the CalFresh statement of facts (SOF), including the CF 285, that they are interested in applying for Medi-Cal.

Requirement	Description
Forms	• If there is no active or pending Medi-Cal case, collect the Request for Tax Household Information (RFTHI). • Based on the review of the CalFresh SOF, mail out the out all necessary forms including, but not limited to, the Disability Determination Services Division (DDSD) packet and the Child Support packet.
Income	Use the most current verification of income from the CalFresh case in the Medi-Cal determination if there is no reported change.
Property	If applicable, use the most current verification of property from the CalFresh case if it is dated the month of the Medi-Cal application or not subject to change.
Other	Use all other verification available from the CalFresh case in the Medi-Cal determination.

04.02.13B Request from Other Public Assistance (PA) Program Recipients
Complete an *ex parte* review as outlined in MPG 04.07.11 whenever requests for Medi-Cal from persons on other PA programs (for example CalWORKs, CalFresh, Cash Assistance Program for Immigrants [CAPI], General Relief, etc.) are received. Use the SOF from the PA case record as the SOF for the Medi-Cal request. Do not surpass the 45-day timeframe for processing applications while obtaining information/verification from other PA case records.

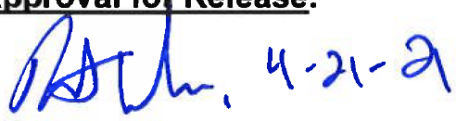
For applicants subject to a property evaluation, property limits must be met in the month of application. The property determination will be valid for twelve months or until there is an eligibility review due to a change in family circumstances. The Medi-Cal applicant or Authorized Representative's (AR) signature must be on the SOF. It is not necessary for the applicant to sign the SAWS 1. Complete and sign the SAWS 1 using the date that Medi-Cal is requested. The redetermination date will be twelve months from the date of the SAWS 1.

Program Impacts:
None

References:
Assembly Bill 59 and Senate Bill 493
ACWDL 01-10

Sunset Date:
This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Processing Individuals Denied SSI/SSP Due to Excess Income	Number	Page
	04.02.15	1 of 2

Revision Date:
04/01/2021

Background:
Complete the Medi-Cal eligibility determinations begun by the Social Security Administration (SSA) for individuals who were denied Supplemental Security Income/State Supplemental Program (SSI/SSP) due to excess income.

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

Policy:
Complete the Medi-Cal eligibility determinations begun by SSA based on data collected by SSA for individuals who were denied SSI/SSP due to excess income on or after July 1, 2009. These denied SSI/SSP cases are new applications, therefore, initiate and/or complete identity, citizenship, income, property, and disability evaluations and receive and review all necessary verifications to complete the eligibility determination.

Procedure:
04.02.15A Application Date
The date of the application for Medi-Cal will be the most recent of the SSI/SSP application date or the date California residency began.

SSI/SSP application dates may be more than a year old. When the SSI/SSP application date is 11 months prior to the current month and eligibility is established in the application month and ongoing, send an application packet.

Submit a disability referral within 10 days of the date of application. For purposes of meeting performance standards, enter into case comments any delays between the SSI/SSP application date as shown on the State Data Exchange (SDX) Medi-Cal Eligibility Data System (MEDS) screens and the date the disability referral was made.

NOTE: Medi-Cal retroactive coverage is available to applicants referred by SSA.

04.02.15B Processing Guidelines
Use the Daily MEDS Alert “9043” and the information received on the SDX MEDS screens to start the Medi-Cal determination process for individuals denied SSI/SSP due to excess income by SSA.

DPC Action:

Step	Action
1	Using the daily MEDS alerts 9043 on Share Point from the Management Report folder, complete the application registration process and assign case to the appropriate Family Resource Center (FRC) bank.

	The Document Processing Center (DPC) will code the application source SSI/SSP Excess Income Denial. Select "SSI/SSP Excess Inc Denial" in the **Source** field of the "Collect Applicant Information" window during Application Registration.
2	Mail the Medi-Cal application packet as noted on 04.02.02. The SOF will not be sent because the application for Medi-Cal was made with the application for SSI/SSP.
3	Enter case comments of actions taken.

FRC Action:
All avenues of eligibility, including Medicare Savings Program (MSP) eligibility, shall be considered.

Conduct an *ex parte* review on all unverified information and follow the two 10-day contact requirements as specified in MPG 04.07.12 to request needed information/verification.

Program Impacts:
None

References:
ACWDL 09-28

Sunset Date:
This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:
4-21-21

Rick Wanne, Director
Self-Sufficiency Services

Adding Newborns	Number	Page
	04.02.16	1 of 1

Revision Date:
04/01/2021

Policy:
Whether or not the infant is Deemed Eligible (DE), the Medi-Cal Statement of Facts (SOF) is never required to add an infant to a Medi-Cal case.

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

Procedure:
04.02.16A Procedures for Non-Deemed Eligible Infants
Infants who are not DE must have an application for a Social Security Number (SSN) and a statement of U.S. citizenship/non-citizen status completed to add them to a case.

04.02.16B Procedures for Deemed Eligible Infants
No forms of any kind are required to activate a DE infant on Medi-Cal during his/her first year. An application is not needed until the infant turns one. The infant is DE for one year from the date of birth if the mother of the newborn received Medi-Cal (zero SOC or where she has met her SOC) at the time of birth and the infant maintains California residency.

Determination for DE may occur at any time during an infant's first year. Once an infant is determined DE, Medi-Cal must be granted within ten calendar days of receiving notification. The 10-calendar day deadline may be extended only if there is not an active case and additional information is needed. In this situation, the DE infant must be added within 45 days. Refer to MPG 05.15 for detailed information on DE.

Program Impacts:
None

References:
ACWDL 91-66, 03-49, 09-17

Sunset Date:
This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:
4-21-21
Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
04/01/2021

Background:
All Medi-Cal applicants are entitled to a timely eligibility determination.

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

Policy:
Make the applicant's Medi-Cal eligibility and share of cost (SOC) determination after the applicant has applied, completed the Statement of Facts (SOF), and provided all essential information and verifications. The eligibility determination is considered complete on the date the Notice of Action (NOA) is mailed to the applicant.

Furthermore, for denials, evaluate the applicant's potential eligibility for other programs and determine eligibility for any other program(s) for which the applicant appears eligible and desires assistance.

Procedure:
04.02.17A Timelines
The determination of eligibility and SOC is completed as quickly as possible but no later than:
- Forty-five (45) days following the date the application is filed.
- Ninety (90) days following the date the application is filed when eligibility depends on establishing disability or blindness.

04.02.17B Extending Eligibility Determination Deadlines
The 45 or 90-day periods may be extended for any of the following reasons:
- The applicant has good cause and was unable to return the completed SOF, supplemental forms or necessary verifications in time for the Human Services Specialist (HSS) to meet the promptness requirement
- There has been a delay in the receipt of information necessary to determine eligibility and the delay is beyond the control of either the applicant or the HSS
- The applicant's guardian or other person acting on the applicant's behalf has failed to provide the essential information requested by the HSS. The extended eligibility determination period may not exceed three months from the date of application in this situation
- The applicant demonstrated good faith effort to provide evidence citizenship and identity and reasonable opportunity period (ROP) was granted to the applicant

When the eligibility determination deadline is extended beyond the 45 or 90-day periods, document the reason for the extended deadline.

04.02.17C Good Cause Criteria
Good cause as reference in section B includes but is not limited to:
- Physical or mental illness or incapacity of the applicant and authorized representative which prevents the return of the required information

- A level of literacy of the applicant and authorized representative which, in conjunction with other social and language barriers, prevents the applicant/authorized representative from meeting the established due date

For general information on good cause refer to MPG 04.21.

Program Impacts:
None

References:
CCR Title XXII, Sections 50173, 50175, 50177
County Policy

Sunset Date:
This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:

4-21-21

Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
04/01/2021

Background:
On July 15, 2008, Congress enacted the Medicare Improvements for Patients and Providers Act of 2008 (MIPPA). One of the provisions under MIPPA requires the Social Security Administration (SSA) to refer consented Medicare Low Income Subsidy (LIS) applications for applicants who have consented to have their information shared to the counties to be evaluated for the Medicare Savings Programs (in other words, Qualified Medicare Beneficiary [QMB], Specified Low Income Medicare Beneficiary [SLMB], or Qualified Individual [QI]). The evaluation includes Medi-Cal and Medicare Savings Program (MSP) eligibility if the applicant provides their consent.

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

Policy:
The Medicare LIS Program, also known as "Extra Help," is available to Medicare beneficiaries with limited income and resources. Those who are LIS eligible will receive financial assistance to help pay for their Medicare Part D prescription drug costs.

Some Medicare beneficiaries are automatically or deemed eligible for LIS based on their no-cost Medi-Cal, SSI, or MSP eligibility. Those who are not deemed eligible may still qualify for LIS based on their income, resources, and household sizes.

Non-deemed eligible Medicare beneficiaries may apply for LIS by submitting a LIS application to SSA by mail or on-line. SSA will review their LIS application and notify the Medicare beneficiaries in writing of their LIS eligibility.

Procedure:
04.02.19A Referral Process
SSA forwards LIS applications where the applicant has consented to have their LIS application forwarded to the County for a Medi-Cal/MSP evaluation. LIS applications are sent to the County via the Medi-Cal Eligibility Data System (MEDS). Use the LIS application information shown on the LIS MEDS screens (LIS 1 – LIS 7) as an application and Statement of Facts (SOF) for Medi-Cal. Obtain the applicant's information by viewing the LIS screens on MEDS.

04.02.19B Types of Application
Two types of LIS applications will be received by the County from SSA.

LIS Application Type	Description
Processed	• LIS 1 screen will have a "N" or blank in the "LIS Application – Completed" field • SSA has completed an eligibility determination for LIS Extra help • Applications contain information used by SSA in their LIS Extra Help determination • Application information has been verified by SSA

	• Will include a denial reason if SSA denied the LIS Extra Help application
Self-Referred	• LIS 1 screen will have a "Y" in the LIS Application – Completed field • Applicant self-assess that they are ineligible to LIS and requests that the information be forwarded to the County for a Medi-Cal/MSP evaluation • SSA has not completed an eligibility determination for LIS Extra Help • Application information has not been verified by SSA

SSA will not transmit LIS applications to the County, where the applicant indicated that they do not want their information forwarded to the County.

04.02.19C Application Date

The date of application for Medi-Cal is the date that the LIS application was filed with SSA. This date is located on the ***LIS Application Date*** field on the ***LIS 1*** screen. However, when a Medi-Cal application date already exists for the individual in CalWIN, determine which application date would be most beneficial to the applicant. See the Application Date section of the LIS Applications Processing Guide 09 for clarification and examples.

NOTE: Retroactive coverage is available to applicants referred via an LIS application.

04.02.19D Processing Timeframe

The determination for Medi-Cal, including MSP eligibility, must be made within the 45-day application processing timeline. The 45-day application processing timeline begins the date the County receives the alert (one business day after the date shown on the **County-Referral Date** field on the **LIS 1** screen). The date the County received the alert, and the "County-Referral-Date" must be narrated in case comments.

04.02.19E MEDS Alerts

All LIS application information received from SSA will be matched against the MEDS databased daily to check for existing MSP and Medi-Cal eligibility. The following MEDS alerts will be generated:

MEDS Alerts	Title and Description
9055	**MIPPA LIS Application – Client Not Found on MEDS** Individuals who have no information on MEDS
9056	**MIPPA LIS – No Current Medi-Cal and MSP eligibility** Individuals who have no current Medi-Cal and MSP eligibility on MEDS
9057	**MIPPA LIS – Current MSP eligibility, but No Current Medi-Cal Eligibility** Individuals who have current MSP eligibility on MEDS
9058	**MIPPA LIS – No Current MSP Eligibility, but Current Medi-Cal Eligibility** Individuals who have current Medi-Cal eligibility on MEDS
9059	**MIPPA LIS –Current MSP and Medi-Cal Eligibility** Individuals who currently have both Medi-Cal and MSP eligibility on MEDS

04.02.19F Processing Guide

The Daily LIS Application Report is available in SharePoint. Processing Guide 09 for LIS Applications is available in the Eligibility Essentials site.

Program Impacts:
None

References:
ACWDL 05-23,10-04

Sunset Date:
This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:

4-21-2

Rick Wanne, Director
Self-Sufficiency Services

National Voter Registration Act (NVRA)	Number	Page
	04.02.20	1 of 1

Revision Date:
04/01/2021

Background:
The National Voter Registration Act (NVRA) is a federal law that requires states to provide voter registration opportunities at all offices that provide public assistance and all offices that provide state funded programs and services to people with disabilities.

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

Policy:
NVRA requirements for Public Assistance Offices information can be found in the Eligibility Policy Procedure Guide (EPPG).

Other Program Impacts:
CalWORKs, CalFresh, and the Cash Assistance Program for Immigrants (CAPI) must comply with NVRA requirements.

References:
MEDIL I 12-02
Senate Bill 35

Sunset Date:
This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:
4-21-21

Rick Wanne, Director
Self-Sufficiency Services

Processing of Electronic Applications	Number	Page
	04.02.22	1 of 6

Revision Date:
October 1, 2025

Background:
Applications submitted through the Covered California (CA) portal, also known as California Health, Eligibility, Enrollment, and Retention System (CalHEERS), are electronically sent to the California Statewide Automated Welfare System (CalSAWS).

Electronic applications:
- Alleviate the constraints of travel and office hours
- Provide customers with an alternative means of applying for or renewing their benefits
- Simplify and expedite the application process by allowing the electronic submission of applications and verifications
- Provide 24-hour access to the screening and application process
- Allow the customer to scan and upload verification documents directly to the web site
- Reduce Family Resource Center (FRC) lobby traffic
- Enable Community-Based Organizations (CBOs) with appropriate authorization to submit applications on behalf of the customer

Purpose:
This section has been revised to include updated guidance regarding the acceptance of electronic signatures collected and submitted by a third party.

Policy:
A customer may submit their application, forms, and verifications electronically to the County for processing. Electronic submissions can be done via BenefitsCal at www.benefitscal.com or Covered CA at www.coveredca.com.

Medi-Cal applications received electronically will be processed in the same manner as mail-in applications except the date of application will be established based on the guidelines outlined in Medi-Cal Program Guide (MPG) 04.02.01C.

Electronic Signatures (e-signatures) outside of BenefitsCal and Covered CA, are only acceptable on Medi-Cal forms when collected using the following software:
- Adobe Sign
- Clio Draft (formerly Lawyaw)
- DocuSign
- Nitro
- PandaDoc

Note: A typed signature collected outside of the above listed e-signature program is not acceptable.
All established application processing policies and procedures will apply unless otherwise specified in this section.

Procedure:

A. Electronic Application Process

All electronic Medi-Cal applications submitted through BenefitsCal or Covered CA will be registered by the Document Processing Center (DPC) and assigned to the appropriate FRC to be processed.

B. Requesting Verifications

Verifications should only be requested after completing an *ex parte* review or if the CalHEERS Business Rule Engine (BRE) Electronic Health Information Transfer (eHIT) is unsuccessful. If information is not verified via the Federal Hub or *ex parte*, request the verifications from the customer. Follow the established two 10-day contact requirement for requesting verifications/information as indicated in MPG 04.07.12.

Attested income that is electronically verified (e-verified) for Modified Adjusted Gross Income/Advance Premium Tax Credit (MAGI/APTC) purposes, cannot be used for Non-MAGI cases. Request documentation of income if unable to verify via the Social Security Administration (SSA), Employment Development Department (EDD), or the Income Eligibility Verification System (IEVS). Refer to MPG 04.07.11 for *ex parte* review information.

Note: All Covered CA application referrals are run through the BRE prior to the County receiving the referral.

C. Verifications Submitted at the FRC or Electronically

Follow the Hyland guidelines to image verifications received. Refer to the CalSAWS Imaging System, Hyland Eligibility Policy and Procedure Guide (EPPG) for further guidance.

D. Processing BenefitsCal Applications

BenefitsCal allows the customer to submit the application and verifications on-line. Current functionality does not require that the customer provide all information necessary to determine eligibility for Medi-Cal. Refer to MPG 04.02.22C for requesting verification. Send any supplemental forms with the Verification Check List (VCL) based on MPG 04.02.02.

E. Processing Covered CA Applications

Applications received from Covered CA will include one of three eHIT eligibility determination results from CalHEERS: Eligible, Conditionally Eligible, or Pending Eligible and must be processed in CalSAWS.

CalHEERS Result	Description
Eligible	An individual will be determined “Eligible” if CalHEERS has e-verified all MAGI eligibility criteria. If the results are not questionable, accept the results and do not request additional information from the customer. If the electronic determination appears to be incorrect, process the case as described under “Pending Eligible”.
Conditionally Eligible	An individual will be determined “Conditionally Eligible” if CalHEERS can verify Medi-Cal eligibility and the individual attests to having satisfactory citizenship/immigration status or a Social Security Number (SSN), but the status cannot be verified.

	• If the determination appears to be correct, approve the eligibility results and allow a 90-day Reasonable Opportunity Period (ROP) for citizenship/immigrations status verification or 60-day ROP for SSN verification based on MPG 04.07.13 and MPG 04.11 • If the determination appears incorrect, process the case as described under "Pending Eligible"
Pending Eligible	An individual will be determined "Pending Eligible" if CalHEERS cannot electronically verify that the individual meets Medi-Cal eligibility, but the attested income is within the MAGI Medi-Cal limit. "Pending Eligible" means that the verifications are required prior to approval of benefits. Conduct an *ex parte* review on all unverified information and follow the two 10-day contact requirements. If "Eligible" or "Conditionally Eligible" but the results are questionable, accept the MAGI eligibility results from CalHEERS and process the case as a change in circumstance redetermination. Send a Medi-Cal Request for Information (MC 355) and allow the MAGI beneficiary 30 days to provide the missing or questionable verification.

For "Pending Eligible" customers who provide the required verifications, the CalHEERS BRE will determine eligibility as follows:

Result	Description
MAGI Eligible	If the customer is determined eligible for MAGI accept the results, issue the customer a Notice of Action (NOA) and establish eligibility for a 12-month period.
Covered CA Eligible	If the customer is determined to be eligible for Covered CA coverage, accept the determination. Covered CA will auto enroll APTC eligible customers into a health plan prior to the termination of their Medi-Cal benefits to avoid a gap in coverage.

If unable to make a final eligibility determination and the two 10-day VCL contact requirement has been met, deny or discontinue the Medi-Cal application for failure to provide. Refer to MPG 04.13.02 for required actions when a customer fails to provide after the second VCL due date.

Note: Continue to work with the customer to collect the necessary information if the customer provides additional verification/information but it is not enough information to determine eligibility.

F. Processing Transitioning Cases from APTC to Medi-Cal

During the Covered CA annual renewal or a reported change in circumstance redetermination, Covered CA enrollees that appear eligible will be referred to Medi-Cal for a final eligibility determination.

Since the Covered CA enrollee is not an existing Medi-Cal beneficiary, the referral is treated as a new application for Medi-Cal purposes. If the Covered CA enrollee is eligible to Medi-Cal, the benefits are granted effective the first day of the month of transition.

While the Medi-Cal evaluation is in process, the Covered CA enrollee will remain in their Covered CA qualifying health plan (QHP) and be placed in a Carry Forward Status (CFS) hold. This will include eligible and conditionally eligible APTC/Cost Sharing Reduction (CSR)/Covered California Plan (CCP) individuals when a redetermination results in MAGI eligibility. The individuals will continue enrolled in their Covered CA plan until a full Medi-Cal eligibility determination has been made by the county and the CFS indicator in CalSAWS is lifted by eligibility staff.

CFS protects the Covered CA enrollee from having a gap in coverage until a full Medi-Cal determination is completed. Customers will receive the NOD64 Covered CA Carry Forward notice informing them that they must continue to pay for their Covered CA QHP to avoid a gap in coverage.

CFS applies to the following Covered CA transitioning case scenarios:
- Customer reports a change (RAC) (e.g., after a renewal or after APTC/CSR/CCP eligibility has gone into effect) and is determined MAGI Medi-Cal Eligible, Conditionally Eligible or Pending Eligible
- During the Renewal Period the customer is determined MAGI Medi-Cal Eligible, Conditionally Eligible or Pending Eligible

CFS does not apply to the following Covered CA transitioning case scenarios:
- Special Enrollment Period (SEP) for APTC/CSR/CCP- RAC
- Open Enrollment/RAC and is determined MAGI Medi-Cal Eligible.
- Medi-Cal Access Program (MCAP)

For those who transition from Covered CA to Medi-Cal, their Covered CA QHP doctor may or may not be available in their new Medi-Cal health plan. If required, the beneficiary will need to select a new plan and will receive plan information from Health Care Options (HCO).

To complete the Medi-Cal eligibility determination, regardless of the outcome, lift the CFS flag in CalSAWS.

Note: Expedite review of Covered CA applications with CFS hold for MC eligibility immediately. Customers will continue paying insurance premiums for the Covered CA QHP while being potentially Medi-Cal eligible and will not be reimbursed for any premiums paid during the CFS hold period.

G. Remote Identity Proofing (RIDP)

RIDP is a required process for online and telephonic Medi-Cal or Covered CA applications that must be run through the Federal Hub and CalHEERS. RIDP is not required for paper applications since the signature on the application satisfies the RIDP requirement.

RIDP is mandatory for the primary applicant only. Verify RIDP in either of the following ways:
- Complete an *ex parte* review to determine if acceptable identity documentation is on file to serve as RIDP verification
- Request identity verification if information on file is not sufficient

Refer to MPG 04.07.06 for acceptable identity verifications.

Note: CalSAWS cases will not be run through the CalHEERS BRE if the RIDP requirement has not been met. Refer to CalSAWS Job Aid – JA Medi-Cal Customer Information for instructions on identity proofing.

H. Applications that must be run through CalHEERS BRE

The CalHEERS BRE must be run for customers who meet any of the following criteria:

- A parent or caretaker-relative (even if age 65 or over or receiving Medicare)
- Pregnant
- Under age 19
- 19-65 years old, with no Medicare eligibility
- Mixed MAGI/Non-MAGI households

I. Applications that must not be run through CalHEERS BRE

The CalHEERS BRE should not be run if the entire household is eligible to:

- A Mega Mandatory Program
- California Work Opportunity and Responsibilities to Kids (CalWORKs)
- Refugee Cash Assistance (RCA)
- Non-MAGI Medi-Cal, with no eligibility to MAGI because of being aged, blind, or disabled **and** receiving Medicare, and there is no dependent child or pregnant person(s) in the household

Note: Review the application to screen for potential MAGI eligibility.

J. Referrals to Department of Health Care Services (DHCS) Investigations

When unable to resolve discrepancies and the information received from a customer continues to be questionable, initiate a fraud referral with the DHCS Investigations Branch. See Medi-Cal Processing Guide 19 - Fraud Prevention for procedural assistance.

K. Confidentiality Guidelines

Process all requests for information in accordance with existing confidentiality guidelines. Although representatives from CBOs may assist the customer with applying for Medi-Cal, they are not automatically entitled to receive confidential case information. An authorization for release of information or a signed appointment of representative must be obtained prior to releasing any confidential information. Refer to MPG 04.02.07 for guidance on Authorized Representatives.

Other Program Impacts:

CalWORKs, CalFresh, and General Relief (GR) applications may also be received through BenefitsCal.

Journal entries must contain adequate information to support all case actions.

References:

42CFR 435.907(f), 42 CFR 435-907, and 42 CFR435.923,
W&I Code 14005.37(r), 14005.63, and 14014.5
MEDIL I 10-12, 13-12, 15-10, and 21-38

ACWDL 00-31, 08-07, 15-01, 16-08, 17-07, 18-16, 24-18

Sunset Date:
This policy will be reviewed for continuance by September 30, 2028.

Approval for Release:

10-28-25

Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
04/01/2021

Background:
This section provides guidance on when to evaluate for Non-Modified Adjusted Gross Income (MAGI) Medi-Cal at application and the forms required for a Non-MAGI evaluation at application. Customers determined MAGI eligible may request a Non-MAGI evaluation and if found Non-MAGI eligible, they must be given the option to select MAGI or Non-MAGI.

Purpose:
This section is revised for the sunset review, no policies or procedures were changed.

Policy:
As required by law, perform a Non-MAGI Medi-Cal eligibility determination when an applicant:

- Requests a Non-MAGI or full Medi-Cal eligibility determination
- Is exempted from the MAGI methodology
- Is income eligible for Premium Tax Credits (PTC), is not income eligible for MAGI-based Medi-Cal, and indicated on the Single Streamlined Application potential eligibility for Medi-Cal on the basis other than MAGI

Customers who are determined MAGI eligible may request a Non-MAGI determination. Evaluate for linkage through disability, age, or blindness and request the applicant or beneficiary to provide all information necessary to process a Non-MAGI eligibility determination. If found eligible for Non-MAGI, give the customer the option to select from MAGI or Non-MAGI eligibility.

Provide applicants potentially eligible for Non-MAGI Medi-Cal with the Non-MAGI evaluation forms. These forms will be used to collect the necessary data elements for a Non-MAGI eligibility determination. Do not discontinue MAGI eligible individuals from MAGI if the Non-MAGI forms are not returned.

Procedure:
04.02.23A Linkage to Non-MAGI Medi-Cal
Potential eligibility for Non-MAGI Medi-Cal applies to individuals who are:

- Aged, Blind, or Disabled
- Seeking Long Term Care (LTC)
- Seeking services under Home and Community-Based Services (HCBS)
- Potentially eligible as Medically Needy
- Requesting a Non-MAGI or full Medi-Cal evaluation

Do not deny Non-MAGI only applicants for failure to provide tax household information as it is not needed to determine Non-MAGI eligibility.

Applying for Medicare Savings Programs (MSP) or Minor Consent does not require a MAGI evaluation.

04.02.03B Non-MAGI Application Processing
The following steps must be taken to evaluate for Non-MAGI:

Step	Action
1	Complete an *ex parte* review.
2	• If *ex parte* is successful, authorize case. • If *ex parte* is unsuccessful: o Provide the Non-MAGI evaluation forms to the applicant. o Enter case comments explaining actions taken. o Follow established intake processing timeframes for the pending Non-MAGI verifications. **Note:** Request only information or documents not already available or identified in the case.
3	Depending on the response:

If the applicant …	Then …
is MAGI eligible and does not provide the Non-MAGI evaluation verifications after following the two-contact requirements,	• leave in appropriate MAGI aid code. • deny Non-MAGI Medi-Cal. • timely issue the appropriate Non-MAGI denial Notice of Action (NOA) and enter case comments.
does not provide the verifications after following the two-contact requirements,	• deny the individual or case in CalWIN. • timely issue the appropriate denial NOA and enter case comments.
provides the verifications,	• update verifications in CalWIN. • evaluate for Non-MAGI Medi-Cal. • authorize appropriate benefits. • timely issue adequate NOA and enter case comments.

Note: Attested income that is e-verified for MAGI/APTC purposes cannot be used for the Non-MAGI Medi-Cal evaluation due to the share of cost (SOC) determination. Only request verification of income that is not verified by the Social Security Administration (SSA) or Employment Development Department (EDD) through the Income Eligibility Verification System (IEVS).

<u>04.02.23C Non-MAGI Medi-Cal Evaluation Forms</u>
For a Non-MAGI evaluation, provide applicants with Non-MAGI Medi-Cal evaluation forms. These forms will be used to collect the necessary data elements for Non-MAGI Medi-Cal eligibility determinations.

Send the following forms to applicants for a Non-MAGI evaluation:

Form #	Title
14-146	Non-MAGI Cover Letter for Applicants
MC 604 IPS	Additional Income and Property Information Needed for Medi-Cal
MC 007	Medi-Cal General Property Standards
DHCS 7077	Notice Regarding Standards for Medi-Cal Eligibility
DHCS 7077-A	Notice Regarding Transfer of a Home for Both a Married and Unmarried Applicant/Beneficiary
Pub 10	Non-MAGI Medi-Cal Programs Brochure

Submission of these forms is not required; applicants may submit this information over the phone or in their preferred method of communication. Clearly narrate this information in case comments.

Note: Only request the MC 210 S-I Income In-Kind/Housing Verification when the situation requires this information to be submitted.

04.02.23D Advanced Premium Tax Credits (APTC) Evaluation

The eligibility determination for APTC will happen concurrently with the MAGI determination. If an applicant is determined income eligible to APTC, they will fail for MAGI Medi-Cal. Send individuals potentially eligible for Non-MAGI the Non-MAGI evaluation forms for a Non-MAGI determination.

If an individual has Medi-Cal with a SOC, they have the option of having only SOC Medi-Cal, SOC Medi-Cal and APTC/Cost Share Reduction (CSR), or only APTC/CSR. SOC Medi-Cal does not meet Minimum Essential Coverage (MEC).

If the applicant is eligible to APTC benefits, the APTC benefits will not be impacted if the applicant fails to provide Non-MAGI Medi-Cal verifications.

Program Impacts:

Automation

- Collect the information from the MC 604 IPS form and enter appropriate information in CalWIN related to other income and property owned by the applicant(s).
- Go to the *Case Individual Detail* window in CalWIN, mark *Evaluate Non-MAGI* as **Yes** and re-determine eligibility.

Forms and Document Capture

The Non-MAGI evaluation forms are available in Xerox and Eligibility Forms Repository.

DPC staff will scan or manually login the barcoded MC 604 IPS form into the CalWIN Electronic Records Management System (CERMS).

References:

ACWDL 17-03, 17-26, 17-26E
MEDIL I 13-03, 13-04, 13-12, 14-02

Sunset Date:

This policy will be reviewed for continuance by 04/30/2024.

Approval for Release:

4-21-21

Rick Wanne, Director
Self-Sufficiency Services